UPSC CSE Mains 2027 · GS Paper II

POLITY

Constitutionalism · Rule of law · Separation of powers · Constitutional morality · Living Constitution · Union and its territory

Handwritten-style notes

Built from the Sarrthi IAS GS-2 Polity handout: Introduction to Constitution, Union and Its Territory.
Bracket trees · mnemonics · PYQ tags · current affairs
Right column and left binding margin are kept blank for your own use.

Personal study edition · for printing

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⚖ CONSTITUTIONALISM · RULE OF LAW ⚖

PYQ None quoted in the handout · Polity handout pp. 3–4

✎ *Constitutionalism means a government whose powers are limited by a supreme law. Rule of Law (Dicey) is one tool for that. Know the meaning, the six features, negative vs positive constitutionalism, why codification alone is not enough, Dicey's three principles and the exceptions to equality.*

CONSTITUTIONALISM: MEANING AND FEATURES

Meaning and concept

→ ***powers of the government are not absolute***; they are limited by a body of laws or a supreme law called the ***Constitution***

→ government must subscribe to this body of laws as ***its legitimacy depends on it***; hence constitutionalism ***abhors absolutism***

→ tools to limit government: ***Dicey's Rule of Law*** and ***Separation of Powers***

Features of constitutionalism

→ ***Rule of Law***

→ ***Separation of Powers***

→ ***basic civil liberties*** and protection of people's rights

→ ***Democracy:*** temporariness of government through periodic free and fair elections

→ ***Independent Judiciary***

→ ***Free Media***

DR FISC — Six features: **D**emocracy (periodic elections) · **R**ule of law · **F**ree media · **I**ndependent judiciary · **S**eparation of powers · **C**ivil liberties. (own mnemonic)

Negative constitutionalism (prevent tyranny)

→ idea that the ***State can be a danger or source of oppression*** gained ground in the late medieval and early modern age

→ developed largely among ***Western thinkers*** to ***prevent tyranny by limiting the powers of the government*** after oppression by the ruling class

Positive constitutionalism

→ zeal for limiting power may ***hinder the State from performing basic functions*** (e.g. public order), leading to ***anarchy***; so the State must be empowered

→ government ***must have certain powers to perform its functions properly***

→ balances power to prevent ***tyranny (excess power and abuse)*** and ***anarchy (inadequate power)***

TA – Positive constitutionalism balances **T**yranny (too much power) against **A**narchy (too little). (own mnemonic)

Constitutionalism beyond the written Constitution

→ these principles are ***assimilated into the Indian Constitution to varying degrees***

→ ***mere codification is not a sufficient condition***: principles must be ***implemented and observable to citizens in daily life***

→ ***United Kingdom:*** no single codified Constitution, yet constitutionalism exists

→ so the presence or absence of codification ***does not guarantee*** the presence or absence of constitutionalism

RULE OF LAW

Meaning and concept

→ many have contributed, but ***A. V. Dicey***'s contribution is the most seminal

→ basically the ***supremacy of law over arbitrary power***: government power exercised according to law, and the law itself consistent with constitutional principles

Dicey's principles

→ ***Supremacy of law:*** rule by ***principles of law, not whims and fancies of the ruler***, and the ruler is also subject to law. SC: ***however high a person may be, the law is above them***

→ ***Equality before law:*** all sections of society equally subject to the law of the land. Affirmative action and positive discrimination depart from strict ***formal equality*** but promote ***substantive equality***

→ ***Equality of law administered through ordinary courts:*** today many forums have adjudicatory functions, e.g. quasi-judicial ***CAT, ITAT*** and other tribunals

SEE – Dicey: **S**upremacy of law · **E**quality before law · **E**qual administration through ordinary courts. (own mnemonic)

EXCEPTIONS TO LEGAL EQUALITY

President and Governors: Article 361

→ while in office, ***no criminal proceedings*** can be instituted or continued against them

→ ***no civil proceedings*** for acts in personal capacity during tenure unless ***two months' prior notice*** is given

→ ***no arrest or imprisonment*** process from any court during the term of office

→ a departure from strict formal equality

A. G. Noorani's criticism

→ termed the criminal exemption a ***mindless borrowing from the West***, based on British practice where courts cannot prosecute the ruler

→ in Britain courts are historically tied to the authority of the Crown and the ***sovereign enjoys constitutional immunity***; in India both the President and the courts are ***creations of the Constitution***, so similar provisions are questionable

→ can be abused: ***politicians facing criminal prosecution can be appointed Governors***

→ if introduced today through a constitutional amendment, it would ***not get the approval of the public or the courts***

Other exceptions

→ ***diplomatic immunity***

→ ***parliamentary privileges: Article 105(2):*** an MP is not liable to any court proceedings for ***anything said or any vote given in Parliament or any committee***; protection for speech inside the House, an exception even to defamation law

DPP — Exceptions to equality: **D**iplomats · **P**arliamentarians (Art 105(2)) · **P**resident and Governors (Art 361). (own mnemonic)

Recall drill: cover and answer

Constitutionalism in one line	powers of government limited by a supreme law	Six features	DR FISC
Negative constitutionalism	prevent tyranny by limiting power	Positive constitutionalism	balance tyranny and anarchy; State must have powers
Is codification enough?	No; UK has none yet has constitutionalism	Dicey's three principles	supremacy of law, equality before law, ordinary courts
President/Governor immunity	Article 361; civil notice of two months	MP speech immunity	Article 105(2)
Who called Art 361 mindless borrowing	A. G. Noorani		

⚖ SEPARATION OF POWERS · CHECKS AND BALANCES ⚖

PYQ None quoted in the handout · Polity handout pp. 5–8

✎ *Power should not sit in one institution, so it is split into law-making, law execution and law adjudication. Perfect separation is impossible; India follows a middle path with checks and balances. Know the overlaps, why strictness fails, each check, and the India / USA / UK comparison.*

MEANING, FUNCTIONS, BENEFITS

Separation of Powers

→ power of government should ***not be concentrated in one institution but divided among them***

→ traditionally ***legislative, executive and judicial/adjudicatory***; in medieval times kings held all, leading to ***absolutism***

→ ***Montesquieu***'s name is indelibly associated with the concept

→ functions: ***law-making*** (legislative) · ***law execution*** (executive) · ***law adjudication*** (judicial)

Benefits

→ ***preserves democracy and rights*** of the people

→ healthy ***division of labour, specialisation and efficiency***

→ ***healthy debate and constructive friction***, so deliberation leads to better outcomes

FUNCTIONAL OVERLAP AMONG ORGANS

Even in the USA, the traditional home of rigid separation, there is dilution. ***Perfect separation is not possible in a modern State*** and is not followed anywhere in the world.

Westminster system

→ in a ***parliamentary system*** separation between legislature and executive is never complete

→ executive = ***permanent bureaucracy*** plus the ***Council of Ministers headed by the PM*** (political executive), who are generally MPs, so a minister is part of ***both*** legislature and executive

→ ***Article 75(5):*** a non-MP can become a minister but must become a member of either House within ***six consecutive months***

→ in the ***USA*** a person cannot be in the Presidential Cabinet and Congress at once: ***the biggest qualification to be a minister in India is a disqualification in the USA***

Delegated legislation

→ law passed in a ***broad skeletal form***; detailed ***rules, regulations and bye-laws*** are framed by the executive

→ law-making is delegated to the executive, a ***subordinate legislature***

Administrative adjudication

→ adjudication is traditionally a judicial function, but here the ***executive carries it out***: e.g. ***district administration (revenue courts)***, tribunals like ***CAT and ITAT***

→ technical matters of adjudication are better handled this way

Judge-made laws

→ where law is ***silent or ambiguous*** the court clarifies it by interpretation: a ***law-making*** function

→ where there is a ***legal vacuum*** the court gives guidelines that function as law, e.g. ***Vishakha Guidelines***

Ordinances

→ urgent need for a law and ***Parliament not in session***: the President can promulgate ***Ordinances under Article 123***

→ function as laws passed by Parliament, subject to constitutional requirements

Regulatory bodies

→ emerged worldwide due to the ***complex modern economy***

→ law-making, implementation and adjudication all vested in them: ***make rules, regulate the sector, penalise defaulters***; e.g. ***SEBI, IRDAI***

MPLADS and Article 372

→ ***MPLADS:*** an MP's main job is legislating, but here MPs ***identify local needs and recommend works***, a developmental (executive) function; ***overlap of legislative representation and executive functions***, though sanction and implementation stay with administrative authorities

→ ***Article 372:*** pre-Constitution laws could be aligned with the Constitution; this power was with the ***President for the first three years***, so the executive performed ***legislative functions***

MAJOR WAD — Eight overlaps: **M**PLADS · **A**rt 372 · **J**udge-made law · **O**rdinances · **R**egulators · **W**estminster (minister is MP) · **A**dministrative adjudication · **D**elegated legislation. (own mnemonic)

LIMITS OF STRICT SEPARATION

Why rigid separation is not maintainable

→ ***specialisation:*** traditional organs cannot handle all complex functions of modern administration

→ ***speed and efficiency:*** if all tribunal cases went to the judiciary it would be overwhelmed and could not perform its primary functions

→ ***public interest: power is not a property but a means to an end***; if the end (serving people, their welfare) is better served by vesting power in an institution not meant to exercise it, ***so be it***

SSP — Limits of strict separation: **S**pecialisation · **S**peed · **P**ublic interest. (own mnemonic)

SYSTEM OF CHECKS AND BALANCES

India does ***not follow strict, rigid separation*** as in the USA but a ***system of checks and balances*** (term borrowed from the USA): functions are divided among branches and ***each acts as a check on the others*** to prevent abuse of power.

Executive checks the judiciary: appointment of judges	→ on paper the executive has a role (President appoints), but in India the process has come to be ***substantially controlled by the judiciary through the Collegium System*** → ***USA:*** President nominates, subject to ***Senate confirmation*** → executive participation helps ensure ***competent judges of integrity***
Legislature checks the judiciary: removal of judges	→ ***Article 124(4):*** SC judge removed by the ***President*** after an ***address by each House***, supported by a majority of the total membership and ***not less than two-thirds of members present and voting***; a corresponding process for High Court judges → so difficult that ***not one HC or SC judge has been removed*** through it to date
Judiciary checks the executive and legislature	→ strikes down ***unconstitutional laws*** and ***illegal or unconstitutional executive action*** → power to determine legality and constitutionality = ***Judicial Review***
Legislature checks the executive	→ laws need ***enactment by the legislature*** → questions the executive via ***Question Hour, resolutions and debates*** → extreme case: ***No-Confidence Motion*** against the Council of Ministers in the Lok Sabha
Executive checks the judiciary: clemency	→ power to ***grant clemency*** for punishments after judicial proceedings: ***President (Art 72)*** and ***Governors (Art 161)*** → a distinct constitutional power, ***not an ordinary appeal***; meant for ***human errors and unduly harsh punishments***

CRJ-NQ — Checks in action: **C**ollegium / appointment · **R**emoval Art 124(4) · **J**udicial review · **N**o-confidence · **Q**uestion Hour · clemency (Art 72, 161). (own mnemonic)

SEPARATION OF POWERS: INDIA, USA, UK

Country	Position (handout)
India	if the offices of ***both President and Vice-President*** are vacant, the ***CJI discharges the President's functions*** under the ***President (Discharge of Functions) Act, 1969***
USA	no such arrangement: ***more rigid*** separation than India
UK	***looser*** separation than the USA; highest appellate judicial function used to sit in Parliament (***House of Lords***), changed by the ***UK Supreme Court in 2009***

India follows a middle path between the rigid USA and the looser UK.

NEED FOR GREATER CHECKS ON THE EXECUTIVE

Why	→ historically ***more power gets vested in the executive*** → if ***judicial independence is compromised*** and the ***opposition is fragmented***, executive rule goes unchecked → so a ***proactive legislature, discussion and an independent judiciary*** are needed, but in contemporary times both are ***less effective*** → ***less discussion on Bills in Parliament***; separation exists on paper but may be weakened ***in a substantive sense***

Institutional checks on executive power

→ **CAG, ECI, UPSC and CVC** enjoy varying degrees of institutional independence
→ **CAG, ECI and UPSC are constitutional bodies; CVC is a statutory body**
→ so there is no **unbridled exercise of power** by the political executive

CECU — Institutional checks: **C**AG · **E**CI · **C**VC (statutory) · **U**PSC. (The first, second and fourth are constitutional.) (own mnemonic)

Recall drill: cover and answer

Who is linked to Separation of Powers	Montesquieu	Three state functions	law-making, execution, adjudication
Art 75(5) time limit	six consecutive months	Ordinance power	Article 123, when Parliament not in session
Judge removal provision	Art 124(4); special majority; none removed so far	Clemency articles	Art 72 President; Art 161 Governor
Who acts if President and VP posts vacant	CJI, under the 1969 Act	Which is more rigid: India or USA	USA
Constitutional vs statutory checks	CAG, ECI, UPSC constitutional; CVC statutory		

CRITICAL APPRAISAL OF THE CONSTITUTION · AMBEDKAR'S WARNINGS

PYQ None quoted in the handout · Polity handout pp. 8–10

✎ *The handout lists five criticisms of the Constitution (borrowed, verbose, bulky, un-Gandhian, inconsistent) and the reply to each. Ambedkar's warnings at the close of the Constituent Assembly are the value-addition.*

CRITICISMS AND REPLIES

Charge 1: un-Indian and borrowed

→ alleged **slavish imitation of the West** and a **carbon copy of the GoI Act, 1935**
→ British frameworks came through laws of **1861, 1892, 1909, 1919 and 1935**; large parts borrowed from the **1935 Act**

Reply

→ all provisions were **debated in the Constituent Assembly** before adoption: structure was adopted, **the soul was debated**
→ framed on **secular democracy**; after many constitutions existed, it would be **foolish not to look at others**; ideas are **not the copyright of any country**
→ **intelligent adaptation, not blind copying**: US **Bill of Rights vs Part III**
→ **Granville Austin:** calling it un-Indian was absurd as **what constitutes Indianness is not defined**

Charge 2: complicated, verbose language

→ the Assembly was full of **legal experts**; it is a **legal document**, so legal jargon is expected
→ **Ivor Jennings:** a "**lawyer's paradise**"

Charge 3: too voluminous, and the defence

→ the effort tried to bring ***under one fold the accumulated experience*** of many constitutions

→ deals with ***details of administration***: accounts, audit, public services, elections, languages

→ ***single Constitution for the whole country*** (the US is smaller as states have their own)

→ ***diversity***: special provisions for states, minorities, backward classes; ***Centre-State relations in detail***

→ detail leaves ***minimal ambiguity*** and helps avoid litigation; the ***GoI Act, 1935*** was itself bulky

DISCO — Why bulky: **D**iversity · **I**nstitutional details of administration · **S**ingle Constitution for all · **C**entre-State detail · **O**ne-fold borrowing (1935 Act) and no ambiguity. (own mnemonic)

Charge 4: Ungandhian Constitution

→ allegation that ***Gandhi's ideology is not adequately reflected***; Congress strategy in the struggle was Gandhian, but post-Independence economy and polity took a different approach (***Gandhi's cottage industries vs Nehru's industrialisation***)

→ ***oceanic circles of power:*** power should radiate ***from the village to the Centre, not the reverse***

→ not enforceable: village panchayats went into ***Directive Principles, Article 40*** (non-justiciable)

→ ***Ambedkar*** saw villages as ***dens of darkness*** (casteism, patriarchy, feudalism); local democracy would represent ***local elites***

→ later local self-government got constitutional status via the ***73rd and 74th Amendments***

Charge 5: lack of theoretical consistency

→ India has many ***contradictions***, so the Constitution reflects them

→ provisions of ***modernity (liberty, equality, fraternity)*** and tradition (debates on ***UCC, divorce, adoption***)

→ India is a ***blend of modernity and tradition***; the ***incoherence in society*** gets reflected in the Constitution

BVBUC — Five charges: **B**orrowed · **V**erbose · **B**ulky · **U**ngandhian · **C**ontradictory (inconsistent). (own mnemonic)

AMBEDKAR'S WARNINGS AT THE INAUGURATION

Three warnings plus one need

→ ***constitutional methods:*** mass protests mattered when ***exploited under British rule*** but not after Independence; use constitutional methods to redress grievances and prevent the ***grammar of anarchy***

→ ***no hero worship in politics:*** do not raise leaders to ***divine status***

→ ***political vs socio-economic equality:*** "***entering an era of contradictions***": ***one person, one vote, one value*** in politics, but inequality continues in socio-economic life; so ***political democracy should be used to alleviate socio-economic inequalities***

→ ***need to cultivate constitutional values:*** constitutionalism and constitutional morality must be nurtured in generations to come

CHE — Ambedkar's warnings: **C**onstitutional methods · **H**ero worship no · **E**quality contradiction (+ cultivate morality). (own mnemonic)

Recall drill: cover and answer

Who called it a lawyer's paradise	Ivor Jennings	Who said un-Indian charge was absurd	Granville Austin
Gandhian ideas in the Constitution	village panchayats in DPSP Art 40; later 73rd, 74th Amendments	Gandhi's oceanic circles	power from village to Centre
Ambedkar on villages	dens of darkness	Ambedkar: grammar of anarchy	give up mass protest, use constitutional methods
Ambedkar on hero worship	no hero worship in politics	Era of contradictions	one vote one value vs socio-economic inequality

⚖ CONSTITUTIONALISM IN PRACTICE · INTERPRETATION · CONVENTIONS ⚖

PYQ None quoted in the handout · Polity handout pp. 10–12

✎ *Writing principles down is not enough; political, administrative and social culture decide whether constitutionalism lives. Courts also interpret the Constitution through definitions and several methods, and conventions give it flesh and blood.*

CONSTITUTIONALISM IN PRACTICE

Three cultures decide it

→ ***political culture:*** parties nurture democracy, but often show ***undemocratic culture***: ***family fiefdoms, high-command culture, less scope for dissent, nomination of criminals, vindictive politics after coming to power***; the very institutions meant to preserve constitutionalism undermine it

→ ***administrative culture:*** civil servants must see themselves as ***servants of the people***

→ ***social value system: high tolerance of unethical practices***; e.g. little public outrage at ***extrajudicial police encounter killings***

PAS — Three cultures: **P**olitical · **A**dministrative · **S**ocial value system. (own mnemonic)

CONSTITUTIONAL INTERPRETATION

Need and aids

→ the Constitution must be ***applied correctly***; it is interconnected and must be read in light of its ***overall philosophy and objectives***

→ ***Article 366*** defines many terms (e.g. SCs, STs); ***Article 12*** defines the State

→ ***General Clauses Act, 1897*** (list of legal terms) is applied through ***Article 367***

Methods the Supreme Court has given

→ ***ordinary meaning of English words:*** commonly used meanings unless the context demands otherwise

→ ***preamble:*** provisions amplify the philosophy summarised in the Preamble; of multiple interpretations the one that ***best fits the Preamble's philosophy*** is correct

→ ***progressive interpretation:*** norms change, so read provisions with ***changing social norms*** and emerging conditions; e.g. ***Article 21*** from restrictive to expansive meaning of life, giving shelter to many rights

→ ***purposive interpretation:*** uses the ***purpose or intent*** (Constituent Assembly Debates); read in light of the ***entire Constitution, an ecosystem in itself***, and all parts read together

→ ***harmonious construction:*** where one provision conflicts with another, ***reconcile them and give maximum possible effect***

→ ***liberal interpretation:*** provisions on ***liberty and security of citizens*** interpreted in their favour; e.g. ***privacy, freedom of the press, RTI*** through ***Articles 19 and 21***

OPPHL — Methods: **O**rdinary meaning · **P**reamble · **P**rogressive · **P**urposive · **H**armonious · **L**iberal. (own mnemonic)

ROLE OF CONVENTIONS

Conventions

→ tools used by the judiciary to interpret the Constitution; some conventions of the ***English parliamentary system*** are used by courts

→ the ***US Constitution originally had seven Articles***, supplemented by conventions and practices

→ uncodified but carry ***legitimacy backed by public opinion and political practice***, not necessarily legally enforceable

→ let the Constitution ***adapt without amendment***; courts use them to interpret it; they provide ***flesh and blood to the dry bones of law***

Recall drill: cover and answer

Three cultures	political, administrative, social value system	Article 366 defines	terms like SC and ST
Article 12 defines	the State	General Clauses Act year and link	1897; via Article 367
Six methods of interpretation	OPPHL	Harmonious construction	reconcile conflicting provisions, maximum effect
Liberal interpretation e.g.	privacy, press freedom, RTI via Arts 19, 21	Conventions give	flesh and blood to the dry bones of law

⚖ CONSTITUTIONAL MORALITY ⚖

PYQ None quoted in the handout · Polity handout pp. 12–13 · current affairs: verify dates

✎ *Constitutional morality is deep commitment to constitutional values even when popular sentiment opposes them. Know Ambedkar's idea, how it differs from public morality, the Navtej and Sabarimala judgments, and the debate on whether courts should use it.*

MEANING AND AMBEDKAR'S IDEA

Constitutional morality is a ***deep commitment to the values of the Constitution***: liberty, equality, fraternity, justice and dignity, ***even when popular sentiment runs against them.***

Dr. B. R. Ambedkar's conception

→ meant ***accepting plural opinions, rejecting coercion, keeping the executive answerable to elected representatives***, and ensuring ***no single person or institution claims absolute authority***

→ ***not a natural sentiment in India***; it had to be cultivated

→ a Constitution can be ***silently subverted*** not by changing its text but by ***distorting how it is administered***

→ courts have built on this: ***protecting minority rights, limiting majoritarianism, keeping all branches in check***

Public morality	***Constitutional morality***
rooted in ***majority beliefs, traditions, customs***	rooted in ***constitutional principles*** (liberty, equality, fraternity, justice)
can be ***majoritarian, regressive, discriminatory***	***inclusive, rights-based, progressive***

subordinate when in conflict	***prevails*** when in conflict

Significance

→ ***protects individual and minority rights*** from majority pressure
→ ***check on the highest functionaries***: ministers, judges, citizens
→ keeps the ***spirit of the Constitution alive*** beyond its text
→ gives courts a tool to ***interpret rights expansively***

PCKI — Significance: **P**rotects minorities · **C**hecks the high · **K**eeps the spirit alive · **I**nterprets rights expansively. (own mnemonic)

JUDICIAL APPLICATION

Landmark judgments

→ ***Navtej Singh Johar v. Union of India (2018)***: SC ***decriminalised consensual same-sex relations between adults*** (Section 377 IPC)
→ ***Indian Young Lawyers Association v. State of Kerala (2018)***: the ***Sabarimala*** judgment on women's entry into the temple
→ in both, ***constitutional morality must prevail over public or social morality*** when they conflict with constitutional rights and values

THE DEBATE

Criticism

→ ***April 2026***: SG ***Tushar Mehta*** in the Sabarimala review argued it should be discarded as a ground of judicial review: "***vague and subjective***", absent from the text, letting courts strike down actions without clear basis
→ ***2018, K. K. Venugopal*** (then AG): "***very dangerous***", could make the SC a ***third chamber of Parliament***

Counter view: Upendra Baxi

→ not a judicial invention: embedded in the ***Preamble, Part III and Part IVA***
→ three ideas: ***equality, liberty, fraternity*** · ***respect for diversity*** · ***Constitution in letter and spirit***
→ protects the ***vulnerable when majority opinion is hostile***; vagueness is inherent in all principles and courts use it through ***reasoned judgments***

Recent (verify): a nine-judge Constitution Bench ***reserved judgment*** on the Sabarimala reference on ***14 May 2026***. Handout view: it is a ***shared responsibility of legislature, executive and judiciary***; discarding it would leave the constitutional spirit vulnerable to the majoritarianism it was designed to check.

Recall drill: cover and answer

Constitutional morality means	deep commitment to constitutional values even against popular sentiment	Ambedkar: not natural, must be	cultivated
Silent subversion happens by	distorting how the Constitution is administered	Navtej Johar 2018	decriminalised consensual same-sex relations (Sec 377)
Sabarimala case 2018	Indian Young Lawyers Association v. State of Kerala	Who called it vague and subjective	Tushar Mehta (SG, April 2026)
Who said very dangerous	K. K. Venugopal (2018)	Baxi: embedded in	Preamble, Part III, Part IVA

⚖ THE CONSTITUTION AS A LIVING DOCUMENT · ARTICLE 21 ⚖

PYQ None quoted in the handout · Polity handout pp. 13-15 · 2025 case: verify

✎ *A living constitution evolves without losing its core identity. Know the seven features that make ours living, five reasons it must be, and the five-stage journey of Article 21 from Gopalan to digital access.*

CONCEPT AND FEATURES

The Indian Constitution is ***not a frozen text***; it is a ***living instrument with capabilities of enormous dynamism***. A living constitution ***evolves with time without losing its core identity***: an ongoing project responding to social, economic and political realities.

What makes it living

→ ***Article 368:*** amendment power; over a hundred amendments since 1950

→ ***amendment procedures: simple majority, special majority, special majority with State ratification***: flexible yet stable; simple-majority changes are made ***outside Article 368***

→ ***Basic Structure Doctrine: Kesavananda Bharati v. State of Kerala (1973)*** keeps amendments within limits

→ ***Judicial Review:*** supported by ***Articles 13, 32, 136 and 226*** (32 and 226 writ jurisdiction; 136 special leave to appeal)

→ ***open-textured language:*** esp. ***Articles 14, 19, 21***

→ ***Directive Principles:*** guideposts to gradually realise socio-economic goals

→ ***constitutional conventions*** develop over time

ABJODDC — Seven features: **A**rt 368 · **B**asic structure · **J**udicial review · **O**pen texture · **D**PSP · **D**ifferent amendment procedures · **C**onventions. (own mnemonic)

Why it is necessary for India

→ ***social:*** gender equality, ***LGBTQ rights***, dismantling caste hierarchies

→ ***economic: 1991 liberalisation, privatisation, globalisation*** forced reinterpretation of socialist provisions

→ ***technological:*** internet, mobile, data, AI, digital identity raise questions on privacy, speech, surveillance

→ ***federal evolution:*** coalition politics, ***cooperative and competitive federalism***

→ ***global engagement:*** treaties, climate agreements, human rights covenants

SETFG — Five drivers: **S**ocial · **E**conomic · **T**echnological · **F**ederal · **G**lobal. (own mnemonic)

Limit: living does ***not*** mean it can mean anything anyone wants. It is bound by the ***values of the Preamble, the limits of the Basic Structure and the discipline of constitutional methods.***

ARTICLE 21: THE LIVING CONSTITUTION IN ACTION

1950
A. K. Gopalan: narrow reading; restrictive ***personal liberty***; rights as separate compartments; "***procedure established by law***" without fairness test

1978
Maneka Gandhi: progressive view; procedure must be ***fair, just and reasonable***; opened a ***whole new world of rights***

PILs
unstated rights read into Art 21 (see list below)

2017
Puttaswamy: ***nine-judge*** bench, unanimous: ***privacy intrinsic to life and liberty*** (physical, informational, decisional); ***overruled ADM Jabalpur (1976)***

Now
dignity in death, partner choice, transgender rights, personality rights, digital access

Rights read into Article 21 (Stage 3)

→ ***livelihood:*** Olga Tellis (1985)
→ ***free legal aid:*** Hussainara Khatoon (1979)
→ ***clean environment:*** M. C. Mehta cases
→ ***education:*** led to ***Article 21A*** by the ***86th Amendment, 2002***
→ ***health:*** Paschim Banga Khet Mazdoor Samity
→ ***shelter:*** Chameli Singh
→ ***speedy trial*** and protection against ***custodial violence***

L-FEEHSS — Stage-3 rights: **L**ivelihood (Olga Tellis) · **F**ree legal aid (Hussainara) · **E**nvironment (M. C. Mehta) · **E**ducation (21A) · **H**ealth (Paschim Banga) · **S**helter (Chameli Singh) · **S**peedy trial. (own mnemonic)

Stage 5: continuing expansion

→ ***right to die with dignity*** (passive euthanasia); ***right to choose a partner***; ***rights of transgender persons***; ***personality rights*** (e.g. Jackie Shroff case)
→ ***right to digital access:*** Pragya Prasun v. Union of India (2025): an ***intrinsic component of the right to life and liberty under Article 21*** (verify)

AMBEDKAR'S INSIGHT

The Constitution is ***not a mere lawyer's document but a vehicle of life, and its spirit is the spirit of the age.*** "***However good a Constitution may be, if those who are implementing it are bad, it will prove to be bad. However bad a Constitution may be, if those implementing it are good, it will prove to be good.***" It lives only when ***institutions and citizens give it life in every generation.***

Recall drill: cover and answer

Living constitution	evolves without losing core identity	Limits on "living"	Preamble values, Basic Structure, constitutional methods
Basic structure case	Kesavananda Bharati (1973)	Judicial review articles	13, 32, 136, 226
Gopalan 1950 vs Maneka 1978	narrow vs fair, just, reasonable procedure	Puttaswamy 2017	nine judges; privacy; overruled ADM Jabalpur
Livelihood / legal aid cases	Olga Tellis / Hussainara Khatoon	Art 21A inserted by	86th Amendment, 2002
Digital access case	Pragya Prasun v. Union of India (2025)		

UNION AND ITS TERRITORY · LINGUISTIC STATES · SMALL STATES · SECOND SRC

PYQ None quoted in the handout · Polity handout pp. 15–17

✎ *After 1947 language became the main basis for redrawing states. Know the arguments for and against, the three committees, Andhra and the 1956 Act, then the small-states debate, the Uttar Pradesh case and the case for a Second SRC.*

LINGUISTIC REORGANISATION OF STATES

After Independence ***language became the main basis*** for reorganising states, replacing the colonial emphasis on ***administrative convenience***. ***1920s:*** Congress accepted it in principle (***Gandhi reorganised Pradesh Congress Committees*** on linguistic lines)

Against

→ ***administrative difficulties*** from numerous linguistic demands

→ ***national integration:*** strong linguistic identities weaken common identity

→ ***secessionism:*** linguistic nationalism may encourage separatism

→ ***regionalism:*** demands for ***jobs, subsidies, benefits*** raise regional hostility

In favour

→ ***administrative efficiency:*** governance in the people's language

→ ***education and culture:*** mother-tongue education

→ ***democratic participation:*** easier engagement

→ ***secular basis:*** alternative to ***religion and caste*** in drawing boundaries

AINR vs AEDS — Against: **A**dministration · **I**ntegration · **N**o secession · **R**egionalism. For: **A**dministration · **E**ducation · **D**emocratic participation · **S**ecular basis. (own mnemonic)

Committee / Commission	Major recommendations
S. K. Dhar Commission (1948)	rejected linguistic reorganisation; favoured ***administrative convenience***
JVP Committee (1948)	***Nehru, Patel, Pattabhi Sitaramayya*** opposed immediate linguistic reorganisation
Fazl Ali Commission (1953)	chair ***Fazl Ali***, with ***K. M. Panikkar and H. N. Kunzru***; rejected ***one state, one language***

DJF — Order: **D**har (no) → **J**VP (not now) → **F**azl Ali (yes, with limits). (own mnemonic)

Major developments

→ ***Andhra State (1953):*** after the death of ***Potti Sreeramulu*** in a hunger strike for a Telugu state; the ***first linguistically reorganised state***

→ ***States Reorganisation Act, 1956: 14 states and 6 Union Territories***

ISSUE OF SMALL STATES

Demand for smaller states persists due to ***administrative convenience, regional identities and development deficits***. Demands: ***Koshal (Odisha), Kodagu (Karnataka), Vidarbha and Konkan (Maharashtra), Bodoland (Assam), Maru Pradesh (Rajasthan), Mithilanchal (Bihar), Gorkhaland (West Bengal)***.

In favour	→ ***administrative convenience:*** large states have varied terrains and priorities; smaller ones are more homogeneous, so planning is easier → ***economic growth:*** higher growth in some cases (Punjab, Haryana; Uttarakhand, Jharkhand, Chhattisgarh) → ***democratic participation:*** capital nearer the people, though not always realised
Issues	→ ***definitional problem:*** what is small or large (population, area, both)? → ***inter-state disputes:*** borders and water → ***fragmentation:*** undoing ***Sardar Patel's*** work → ***no guarantee of human development:*** needs resources, planning, bureaucracy, leadership → ***financial constraints:*** lower resources, costs of capitals, central dependence → ***alternative: decentralisation*** via districts, panchayats, urban local bodies

AEG vs DIFNFA — For: **A**dministration · **E**conomy · **G**rassroots democracy. Against: **D**efinition · **I**nter-state disputes · **F**ragmentation · **N**o human-development guarantee · **F**inance · **A**lternative (decentralise). (own mnemonic)

Democratic decentralisation should be the first line of action, followed by adequate funds and empowerment with ***functions and functionaries***.

Case of Uttar Pradesh	→ ***Ambedkar*** was wary of one huge state; he proposed ***dividing UP into three states*** for ***administrative convenience, disproportionate influence in national politics and better minority representation*** → recent proposals: ***Harit Pradesh, Awadh, Purvanchal, Bundelkhand***; economic viability questions remain → ***counter:*** if smaller is the solution, create ***more districts***; empower local bodies first

CASE FOR A SECOND SRC

Why	→ ***continuing statehood demands:*** reorganisation is an ***evolving exercise, not one-stop*** → ***changing regional realities:*** three decades of LPG reforms caused ***demographic, economic, social, regional imbalances*** and neglect allegations → ***growing population*** in certain states → ***objective decision-making:*** assess on ***administrative convenience, economic viability, development deficits, cultural identity, national unity***, not politics
Way forward	→ ***Second SRC*** with rational, scientific, objective criteria → ***economic viability*** assessment → ***democratic decentralisation*** (funds, functions, functionaries) → ***address development deficits:*** packages, autonomous councils, development boards → ***statehood as a last resort***, not a panacea

SEDAL — Way forward: **S**econd SRC · **E**conomic viability · **D**ecentralise · **A**ddress deficits · **L**ast resort statehood. (own mnemonic)

Recall drill: cover and answer

Dhar Commission year, view	1948; against linguistic, for administrative convenience	JVP Committee members	Nehru, Patel, Pattabhi Sitaramayya
Fazl Ali Commission members	Fazl Ali, K. M. Panikkar, H. N. Kunzru	First linguistic state	Andhra (1953), after Potti Sreeramulu's death
1956 Act result	14 states and 6 UTs	Ambedkar on UP	divide into three states
First line of action on small states	democratic decentralisation	Second SRC criteria	administrative, economic, development, cultural, national unity

DEMAND FOR DELHI STATEHOOD

PYQ None quoted in the handout · Polity handout pp. 17–18 · 2023 Act: verify

✎ *Delhi has an elected government but no control over police, public order and land. Know the constitutional position, the pro and anti arguments, the 2018 and 2023 Supreme Court rulings, the 2023 Act and the way forward.*

CONSTITUTIONAL POSITION

Where Delhi stands

→ national capital, but the elected government lacks full control of ***police, public order and land***

→ ***69th Amendment Act, 1991*** inserted ***Article 239AA***: Legislative Assembly and Council of Ministers

→ designated ***National Capital Territory (NCT)***, administered by a ***Lieutenant Governor*** appointed by the President

→ ***police, public order, land*** are outside the Assembly's competence

→ Parliament retains power to legislate on ***State and Concurrent List*** subjects for Delhi

ARGUMENTS

In favour of statehood

→ ***delay in decision-making:*** Centre handles police, order, land; elected government and LG share some responsibility, so ***fragmented responsibility means fragmented accountability***

→ ***population:*** many full states are smaller than Delhi

→ ***democratic accountability:*** the elected government needs adequate powers; greater autonomy reduces ***LG-government conflict***

Against statehood

→ ***national capital:*** sentimental value for all Indians, cannot be the property of one section; houses ***Parliament, the Supreme Court, foreign missions***

→ ***financial viability:*** an ***urban agglomeration***, industry shifting out due to pollution norms; infrastructure needs large resources

→ ***resource dependency:*** relies on neighbouring states for ***water, power, resources***

→ ***population argument limits:*** many cities exceed small states; should they all be states?

DPD vs NFRP — For: **D**elay · **P**opulation · **D**emocratic accountability. Against: **N**ational capital · **F**inance · **R**esource dependence · **P**opulation argument stretched. (own mnemonic)

JUDICIAL AND LEGISLATIVE DEVELOPMENTS

2018
SC judgment: stressed ***constitutional morality, representative government and collaborative federalism*** in Delhi's administration

2023
SC judgment: the elected Delhi Government has ***legislative and executive powers over services*** except ***police, public order, land***

2023
GNCTD (Amendment) Act, 2023: statutory framework under which the ***Union retains significant control over appointments, transfers and postings*** of officers

Way forward

→ rather than full statehood, focus on ***institutional clarity***: LG in a ***constitutional/ nominal advisory role*** on non-reserved matters

→ ***greater administrative autonomy*** to the elected government over civic governance and public service delivery, while keeping Union control over ***core strategic functions***

Recall drill: cover and answer

Article for Delhi Assembly	239AA via 69th Amendment, 1991	Three subjects outside Delhi Assembly	police, public order, land
Who administers Delhi	Lieutenant Governor appointed by the President	2023 SC ruling	Delhi government controls services except police, public order, land
2023 Act effect	Union keeps control over postings and transfers	Way forward	LG advisory role; more civic autonomy; Union keeps strategic functions

LADAKH · STATEHOOD · SIXTH SCHEDULE

PYQ None quoted in the handout · Polity handout pp. 18–19 · 2025–26 developments: verify

✎ *Ladakh became a Union Territory without a legislature in 2019. Know its set-up, the grievances, the four-point demand of LAB and KDA, why Sixth Schedule is sought, the Centre's position and a balanced way forward.*

CONSTITUTIONAL POSITION AND GRIEVANCES

Position

→ ***J&K Reorganisation Act, 2019*** made Ladakh a separate ***UT without a legislature*** on ***31 October 2019***

→ ***administration:*** ***Lieutenant Governor*** under ***Article 239***, with ***AGMUT cadre*** officers

→ ***local governance:*** two Hill Councils, ***LAHDC Leh and LAHDC Kargil***, with limited autonomous powers

→ ***judiciary:*** shares the ***High Court of J&K and Ladakh***

→ ***representation:*** ***one Lok Sabha seat***, no Legislative Assembly or Chief Minister

Major grievances

→ ***democratic deficit:*** no elected Assembly

→ ***tribal identity:*** fear over ***land, employment, resources***

→ ***ecological vulnerability:*** unregulated ***tourism, mining, infrastructure*** threaten glaciers, water, biodiversity of a fragile high-altitude desert

FOUR-POINT DEMAND

Leh Apex Body (LAB)

→ and **Kargil Democratic Alliance (KDA)** demand: **1)** full statehood with a Legislative Assembly
→ **2)** Sixth Schedule status
→ **3)** a separate Public Service Commission
→ **4)** two Lok Sabha seats (Leh and Kargil).

SSPL — Four demands: **S**tatehood · **S**ixth Schedule · **P**SC of its own · **L**ok Sabha seats (2). (own mnemonic)

Sixth Schedule demand

→ **Article 244(2):** provides **Autonomous District and Regional Councils** with powers over land, forests, customs, local administration in specified **Northeastern tribal areas**
→ **NCST recommendation (2019):** Sixth Schedule protection for Ladakh given its predominantly tribal population
→ **significance:** tribal self-government, cultural protection, local control over resources and ecological conservation
→ **requirement:** a **constitutional amendment**, as coverage is limited to specified Northeastern states

CENTRE'S POSITION AND WAY FORWARD

Centre's position and developments

→ **strategic concerns:** sensitive borders with **China and Pakistan**
→ **alternative safeguards: Article 371-style** protections for land, culture, employment discussed
→ **MHA High-Powered Committee** to negotiate with Ladakhi representatives
→ **public mobilisation: Sonam Wangchuk** and Ladakhi groups: protests, marches, hunger strikes
→ **2025:** domicile, reservation, official language and recruitment safeguards, plus Hill Council provisions; **2026:** talks continue with differences over the extent of self-government (verify)

Way forward

→ **democratic representation:** examine an elected Assembly with national-security safeguards
→ **constitutional protection:** Sixth Schedule or Article 371-style
→ **strengthen Hill Councils** with **Funds, Functions and Functionaries (3Fs)**
→ **local employment:** recruitment safeguards; separate PSC demand
→ **sustainable development:** local say on glaciers, water, fragile ecosystems
→ **continued dialogue** with LAB and KDA

DCSLSC — Way forward: **D**emocratic representation · **C**onstitutional protection · **S**trengthen Hill Councils (3Fs) · **L**ocal jobs · **S**ustainable development · **C**ontinued dialogue. (own mnemonic)

A lasting solution must balance **democratic autonomy, tribal identity, ecological protection and national security**.

Recall drill: cover and answer

Ladakh UT date	31 October 2019, without a legislature	Ladakh administered under	Article 239 by an LG; AGMUT cadre
Hill Councils	LAHDC Leh and LAHDC Kargil	Who makes the four demands	LAB and KDA
Four demands	statehood, Sixth Schedule, own PSC, two Lok Sabha seats	Sixth Schedule article	Article 244(2)
NCST recommendation year	2019	3Fs	funds, functions, functionaries